

ANNEX 1.

DECISION OF THE HIGH COMMISSIONER
REGARDING THE JURISDICTION OF DANZIG COURTS
IN ACTIONS BROUGHT BY RAILWAY OFFICIALS
AGAINST THE RAILWAY ADMINISTRATION
(on April 8th, 1927).

[*Translation.*]

On January 11th, 1926, the Polish Representative forwarded to the High Commissioner a note in which it was stated that the Polish Government would not, in future, take cognizance of actions brought by railway officials which were based on the provisions of the Agreement of October 22nd, 1921. It would not enforce any judgment given in such actions by the Danzig Courts.

In a note dated May 27th, 1926, the Senate explained to me its point of view, requesting me to obtain, by mediation, the withdrawal of the Polish statement.

Prolonged conferences, for the purpose of reaching a solution, took place with the representatives of the two Parties. The Danzig Senate then asked me to give a decision in this matter with reference to the extent of the competence and jurisdiction of the Danzig Courts. The Senate wrote to me on January 12th, 1927, observing that there had been no withdrawal of the statement; it therefore requested me to give the following decision:

(a) that railway employees who had passed from the service of the Free City into Polish service, were entitled to bring actions in respect of pecuniary claims, even if these claims were based on the Danzig-Polish Agreement of October 22nd, 1921 (Agreement concerning officials, *Beamtenabkommen*), or on the declaration made under Article 1 of this Agreement, which was accepted by the Polish Railways Administration;

(b) that Danzig Courts were entitled to hear the actions referred to in (a);

(c) that, consequently, the Polish Railways Administration was bound to accept the jurisdiction of the Danzig Courts in disputes such as those mentioned in (a), and to enforce the judgments given by those Courts.

In a letter dated February 8th, 1927, based on his note of January 11th, 1926, and on a memorandum which he had

submitted to me during the negotiations of June 30th, 1926, the Polish Representative maintained the views to which I have referred.

The Parties submitted reply and rejoinder on February 28th and March 23rd, 1927, respectively.

My decision is as follows:

1.—The general argument upheld by Poland that the Danzig Courts are not legally entitled to take cognizance of actions in respect of pecuniary claims brought by railway servants who have passed from the Danzig service into Polish service, is unfounded.

In general, Danzig members of the railway staff are entitled to bring actions against the Administration in the courts of the Free City.

The right of officials and employees in the service of a State administration to sue in the civil courts for pecuniary claims on the strength of their contracts is not a right recognized *eo ipso*. The law of several countries does not recognize such jurisdiction and lays down that claims of officials against the State do not come within the scope of civil law. These claims therefore, failing any special provisions, do not come within the jurisdiction of the civil courts.

In the case of these railway servants, however, the rule that the Parties concerned may bring actions in the civil courts has been specially recognized.

It has been recognized in the Agreement of October 22nd, 1921, in Article 6 of which it is laid down that officials who have been kept on in the service of the Polish railways shall retain any acquired rights the existence of which can be proved.

It is laid down, moreover, in the Constitution of the Free City (Article 92) that officials may have access to the civil courts for the purpose of vindicating their pecuniary rights.

In Prussian law the same rule is admitted under a "Law concerning the extension of access to the civil courts", dated May 24th, 1861.

Poland is therefore obliged to recognize, in these actions, the jurisdiction of the civil courts.

In this instance the civil courts are the Danzig Courts. This is a consequence of a Decision given by the High Commissioner, General Haking, on September 5th, 1921¹ (No. 12 c), which is binding on both Parties and lays down that:

¹ See C. 328. M. 236. 1921. I. and *Official Journal*, November 1921, pp. 974-978. [Note by the Secretary-General.]

"Everything connected with the Polish Railways Administration within the territory of the Free City is subject to the civil and criminal Courts of Danzig. The Polish Railway Administration has no sovereign rights within the territory of the Free City and therefore can establish no courts of law within its territory."

This Decision means that in all matters coming within the jurisdiction of civil courts, these courts shall be the Danzig Courts. In view of the other points to be examined, one observation must be added: General Haking did not contemplate and could not have contemplated the introduction of jurisdiction in cases in which otherwise there would have been none. He merely recognized the sole jurisdiction of the courts of the Free City in matters in which civil jurisdiction generally applies.

Pecuniary claims by railway employees at Danzig, based on their contracts, are subject to this rule; the jurisdiction of the Danzig Civil Courts is proved in principle and should be recognized by the Polish State.

Any claim for payment based on contracts, particularly claims for wages, pensions, half-pay and other grants under the contract, may form the subject of an action in the Danzig Civil Courts (unless there be some special jurisdiction recognized by law, as might be the case in questions connected with social insurance).

Such actions, brought personally and without intermediary by the Parties concerned, are in the nature of civil actions.

2.—The Senate also requests me to decide whether the position is the same in cases in which the claims for payment are based on the Agreement of October 22nd, 1921 (*Beamtenabkommen*), or on the declarations made in conformity with Article 1 of this Agreement.

The reply to this must be that such cases cannot arise. At law an official cannot found a claim for payment solely on the Agreement or the above-mentioned declarations.

In order to bring a personal and direct civil action against the Administration, the employee must be able to plead some provision in his contract. It is through the contract given by the Administration that the latter assumes responsibility towards the employee. The conditions of the contract can alone establish the legal relations between the official and the Administration.

I need not here consider what laws, service regulations, etc., contain the provisions of this "contract", that is to say the

series of provisions which establish the legal relationship between the Railway Administration and its employees. It has been suggested to me that they may be contained in the Polish Law of October 19th, 1923, concerning the remuneration of officials (*Besoldung der Staatsbeamten*) and the regulations for its application as well as other similar rules. On the basis of all these provisions an employee may ask the courts to give a judgment.

But the provisions of the Agreement of October 22nd, 1921, are not provisions on which a civil, personal and direct action can be brought by the person concerned.

The Agreement of October 22nd, 1921, does not form part of the contract which establishes legal relations between the Administration and its employees. It is an international treaty concluded between two Governments, between two States, an international act which establishes reciprocal legal relations between governments. That is its only force.

It is a rule of law generally recognized in doctrine and in practice that international treaties do not confer direct rights on individuals, but merely on the governments concerned. Very often a government is obliged, under a treaty, to accord certain benefits or rights to individuals, but in this case the individuals do not themselves automatically acquire these rights. The government has to introduce certain provisions into its internal legislation in order to carry out the obligations into which it has entered with another government. Should it be necessary to insist on the carrying out or application of this obligation, the only Party to the case who can legally take action is the other government. That government moreover would not institute proceedings in civil courts but would take diplomatic action or apply to the competent organs of international justice.

The case in question is not comparable to that of an undertaking on behalf of a third Party (*Versprechen der Leistung an einen Dritten*) which figures in certain civil codes, precisely because international treaties are not civil contracts under which governments assume obligations at private law on behalf of the persons concerned. To give an example: "the most-favoured nation" clause in a treaty of commerce does not entitle an individual to refuse to pay customs duties on the ground that in his opinion they are too high to be compatible with the clause; he can only base his action on the internal customs legislation which should be drafted in conformity with the clauses of the treaty of commerce.

In this respect the *Beamtenabkommen* of October 22nd, 1921, is similar to all other international treaties. In the Preamble it formulates the rules under which the Polish Government agrees to take into its service the employees of the Danzig railways. The obligation undertaken by the Polish Government is towards the Danzig Government: a Danzig employee cannot therefore take action in the civil courts to secure the application of the Treaty. There is nothing to show that in this particular international agreement the Parties intended to institute an exception to the general rule as regards treaties, by conferring direct and personal rights on the individuals in question. In no case does the terminology of the Agreement differ from that of an ordinary agreement between governments; this fact is clearly brought out in the Preamble itself. Its clauses could hardly serve as a direct ground for personal civil action. A civil court would be more than a little embarrassed if it had to decide claims based not merely on considerations of private law, but also on points of general administrative organization. This observation applies, not only to clauses such as those contained in Articles 3, 5 and 12 and to actions for damages and interest which may be based on the same, but also to matters arising out of Articles 7 and 8, in which also considerations connected with administrative and general organization must necessarily play a considerable part.

The personal legal guarantees afforded to railway servants under the Agreement are not less important than those which existed under the Danzig Administration. Then, as now, railway servants were free to take civil proceedings in all matters connected with an infringement of their contract. If necessary, the Senate of the Free City can apply to the Polish Government when, in the Senate's opinion, some clause of the Agreement has been incorrectly applied to railway servants. It would then be possible to resort to international procedure and it is certain that the railway servants would be afforded that protection to which they are entitled under the international provisions concluded on their behalf.

It is impossible, therefore, to conceive of an action brought by a railway servant against the Administration in the civil courts to obtain payment, if the action be based solely on a clause of the Agreement of October 22nd, 1921. In any case, the courts would be obliged to decide that such an action could not be maintained at law.

3.—I now have to consider whether the clauses of the Treaty itself might not provide grounds on which a personal action could be brought in the civil courts: this may be the

effect of the declarations made under Article 1 of the Agreement. The Senate asks me to lay down that the Danzig Courts may try actions based on these declarations.

The declarations in question are the personal statements which Danzig railway employees were bound to make if they wished to enter into Polish service.

The article of the Agreement is worded as follows¹:

"Artikel 1. — Wegen Uebernahme in den polnischen Eisenbahndienst im Gebiete der Freien Stadt Danzig sollen sich sämtliche Eisenbahnbeamten äussern, ob sie ihre Beibehaltung im polnischen Dienst wünschen.

Diese Aeusserungen werden in der Form einer entsprechenden auf diese Verordnung bezughabenden Erklärung zu erfolgen haben. Diese Erklärungen, welche keine weiteren Zusätze und Bedingungen enthalten dürfen, sind der polnischen Staatsbahndirektion in Danzig durch den durch Entscheidung des Hohen Kommissars vom 15. August 1921 bestellten Danziger Delegierten binnen 8 Wochen nach erfolgter Uebernahme der Danziger Eisenbahnen durch Polen vorzulegen.

Die Uebernahme erfolgt nach dem erforderlichen Kopfetat."

In conformity with this article, declarations have been signed and forwarded to the Polish Administration.

In virtue of these declarations, signed by the employees and accepted by the Polish Administration, the latter must be deemed to have accepted the clauses of the Agreement as clauses of a bilateral contract between the State and the employees.

The declaration is worded as follows²:

¹ *Translation made by the Secretariat: "Article 1.—All railway officials shall, for the purpose of transfer to the Polish Railway service in the territory of the Free City of Danzig, state whether they desire to remain in the Polish service.*

"The statement shall be made in the form of a declaration referring to this provision. These declarations, which may not contain any additions and further conditions, shall be submitted, within eight weeks after the taking over of the Danzig railways by Poland, to the Polish State Railway Management in Danzig by the Danzig delegate appointed under the High Commissioner's Decision of August 15th, 1921.

"Transfer shall be made according to the numbers required and provided for in the budget." [Note by the Secretary-General.]

² *Translation made by the Secretariat: "Declaration*.—I declare that I am prepared to remain, as from April 1st, 1922, in the Polish Railway service in the territory of the Free City of Danzig under the conditions laid down in the Agreement concluded between the Danzig and the Polish Governments on October 22nd, 1921.*

(Signature.)

* Further additions and conditions render this declaration null and void." [Note by the Secretary-General.]

“*Erklärung* *. — Ich erkläre mich bereit, vom 1. April 1922 angefangen, im polnischen Eisenbahndienst im Gebiete der Freien Stadt Danzig unter den in der am 22. Oktober 1921 zwischen der Danziger und der Polnischen Regierung abgeschlossenen Vereinbarung festgesetzten Bedingungen zu verbleiben.

[Unterschrift.]

* Weitere Zusätze und Bedingungen machen diese Erklärung ungültig.”

Is the legal effect of these declarations really to transform the articles of an international treaty into clauses in a personal contract?

Personally I do not think so. It is not the signature and acceptance of these declarations which constitute the conclusion of a contract for service between the Danzig employee and the Polish Administration. The contract was concluded by the “taking over” (*Uebnahme*) to which the Polish Government had bound itself under the terms of Article 2 of the Agreement, namely¹:

“*Artikel 2.* — Sämtliche Arbeiter — darunter fallen auch die im Arbeiterverhältnis stehenden Aushilfsbediensteten — werden nach dem Personalstande vom Tage des Abschlusses der Danzig-polnischen Konvention, d. i. vom 9. November 1920, vollzählig ohne besondere Anmeldung in den polnischen Eisenbahndienst übernommen werden.

Wenn der gegenwärtige Stand der Arbeiter und der im Arbeiterverhältnis stehenden Aushilfsbediensteten den Stand vom 9. November 1920 überschreiten sollte, werden von der Uebnahme in den polnischen Eisenbahndienst die überzähligen Arbeiter — von den zuletzt in den Eisenbahndienst eingetretenen angefangen — so lange ausgeschlossen, bis der am 9. November 1920 bestandene Arbeiterstand erreicht ist. Arbeiter, die bei einer Dienststelle überzählig werden sollten, werden zur Auffüllung

¹ Translation made by the Secretariat: “Article 2.—All workmen, including auxiliary personnel regarded as workmen, shall pass integrally into the Polish railway service without special notification, on the basis of their number on the date of the conclusion of the Danzig-Polish Treaty, i.e. November 9th, 1920.

“Should the present number of workmen and of auxiliary personnel regarded as workmen exceed the number employed on November 9th, 1920, the workmen in excess of the latter number, beginning with those who last entered the railway service, shall be successively excluded from such transfer until the number as on November 9th, 1920, is reached. Workmen in excess of the strength of any office shall be employed or held in readiness to fill vacancies in another office. Auxiliary personnel permanently doing the duties of officials shall not be included in the budgetary number of workmen for purposes of transfer.” [Note by the Secretary-General.]

von Lücken an andere Stelle verwandt oder vorgemerckt. Die Hilfsbediensteten, die ständig Beamtendienste verrichten, zählen bei der Uebernahme nicht zum Arbeiterkopfetat."

The declaration itself is merely an antecedent condition to be fulfilled by the employee before the "taking over" (*Uebernahme*) of that employee. The "taking over" itself was effected according to Article 2 without special notification, directly the employees were allowed to continue to carry out their duties. It was a wholesale transaction by which the Polish Administration became the employer of the Danzig staff. As for the direct and personal obligations assumed by this employer towards the employees, we have only the legal provisions to which I referred above and which constitute the "contract of service".

The character of the antecedent declarations is obvious. It was simply a question of formally establishing the fact that before he was "taken over" each separate employee *really desired* to enter into the Polish service. These employees therefore were required to state whether they were prepared to make the change and whether they agreed to do so under the system defined in the Danzig-Polish Agreement. The Polish Administration, by accepting and taking cognizance of these declarations, did not thereby enter into a contract with each employee—a contract which would have converted the terms of the treaty into clauses of a civil contract. It merely verified the desire of the persons concerned; the declaration is a sort of *declaration of option*. It was a question of recognizing a system established under an agreement at public international law, and not of documents intended to constitute a "contract of service".

One of the clauses of the Agreement—Article 9—lays down that: "All matters connected with the officials and employees who have passed into Polish service shall be settled by the Polish Administration." (*Sämtliche Angelegenheiten der im polnischen Dienst übergetretenen Beamten und Arbeiter regelt die polnische Staatsbahnverwaltung.*)

This is even clearer proof of the fact that, according to the very conditions under which the Danzig railways were transferred to the Polish Administration, it is under the internal laws and regulations of the latter (which laws and regulations should, of course, be in conformity with the provisions of the Agreement, as we have pointed out under (2) that the employees acquired their personal rights. With regard to the application by Poland of the provisions of the Agreement concluded with Danzig, the Government of the Free City alone is entitled to proceed against Poland in connection with the observance of clauses favourable to Danzig employees.

We must therefore conclude that no personal action to obtain payment under the terms of the contract of service, could be brought on the ground of the above-mentioned declarations; if such an action were opened in any civil court, the court would be bound to set it aside as not based on law.

4.—To sum up, my decision is as follows:

Pecuniary claims of any kind, based on one of the provisions which constitute the contract of service for Danzig employees of the Polish railways who have passed into the service of the Polish Administration under the Danzig-Polish Agreement of October 22nd, 1921, and in particular claims in connection with salaries, pensions, half-pay, and other grants under the contract, may form the subject of an action in the Danzig Courts (except for the reservation mentioned on pages 5-6¹); the clauses of the Agreement itself, and the declarations referred to in Article 1 of the Agreement, are not to be regarded as provisions which constitute the contract of service of the above-mentioned employees, and therefore they cannot give ground for a personal action to be brought in the courts;

under these circumstances, I do not think that the question set out in (c) arises.

Done at Danzig, April 8th, 1927.

(Signed) VAN HAMEL,
High Commissioner.

¹ See page 30.